

BEFORE THE FEDERAL MARITIME COMMISSION

INTERMODAL MOTOR CARRIERS CONFERENCE,
AMERICAN TRUCKING ASSOCIATIONS, INC.

Complainant,

v.

OCEAN CARRIER EQUIPMENT MANAGEMENT
ASSOCIATION, INC., CONSOLIDATED CHASSIS
MANAGEMENT, LLC, CMA CGM S.A., COSCO
SHIPPING LINES CO. LTD., EVERGREEN LINE
JOINT SERVICE AGREEMENT, FMC NO. 011982,
HAPAG-LLOYD AG, HMM CO. LTD., MAERSK
A/S, MSC MEDITERRANEAN SHIPPING
COMPANY S.A., OCEAN NETWORK EXPRESS
PTE. LTD., WAN HAI LINES LTD., YANG MING
MARINE TRANSPORT CORP., AND ZIM
INTEGRATED SHIPPING SERVICES,

Respondents.

FMC Docket No. 20-14

JOINT STATUS REPORT AND PROPOSED AMENDED DISCOVERY SCHEDULE

Complainant Intermodal Motor Carriers Conference of the American Trucking Associations (“IMCC”) and Respondents Ocean Carrier Equipment Management Association, Inc. (“OCEMA”), Consolidated Chassis Management, LLC (“CCM”), CMA CGM S.A. (“CMA”), COSCO Shipping Lines Co. Ltd. (“COSCO”), Evergreen Line Joint Service Agreement, FMC No. 011982 (“Evergreen”), Hapag-Lloyd AG (“Hapag-Lloyd”), HMM Co. Ltd. (“HMM”), Maersk A/S (“Maersk”), MSC Mediterranean Shipping Company S.A. (“MSC”), Ocean Network Express Pte. Ltd. (“ONE”), Wan Hai Lines Ltd. (“Wan Hai”), Yang Ming Marine Transport Corp. (“Yang Ming”), and Zim Integrated Shipping Services (“Zim”) (collectively the “Parties”) have conferred and submit this Joint Status Report and Proposed Amended Discovery Schedule.

Since filing their last Joint Status Report on June 1, 2021, the Parties have progressed discovery as follows:

- June 1: Order filed and served (“June 1 Order”) on Complainant’s Motion to Compel Discovery against Direct ChassisLink, Inc. (“DCLI”), Flexi-Van Leasing, Inc. (“Flexi-Van”) and Interpool, Inc. d/b/a TRAC Intermodal (collectively the “IEPs”).
- June 3: Stipulation and Second Amended Order of Confidentiality filed. An Order entering same was filed and served on June 9, 2021.
- June 11: Complainant served documents (31,157 pages) in response to Respondents’ First Requests for Production.
- June 14: Respondents served Answers to Interrogatories and written Responses to the Second Requests for Production propounded by Complainant.
- July 1: Non-party IEPs served documents (288 pages) in response to subpoenas served by Complainant.
- July 8: Respondent OCEMA served documents (17,750 pages) in response to Complainant’s Requests for Production.
- July 16: Non-party IEPs served documents (168 pages) in further response to subpoenas served by Complainant.
- July 26: Non-parties Container Port Group, Evans Delivery, Intermodal Cartage TCW, Tri-Modal, Ventura Transfer and Reliable Transportation served documents (228,895 pages) in response to subpoenas served by Respondents.

- July 30: Respondents CMA, HMM, OCEMA, and Yang Ming served additional documents (20,190 pages) in response to Complainants' Requests for Production.
- August 2: Non-parties Bulldog Hiway Express, Evans Delivery, Reliable Transportation, TCW and Tri-Modal served additional documents (121,808 pages) in response to subpoenas served by Respondents.
- August 3: Respondent Hapag-Lloyd AG served over 28,000 pages of documents in response to all outstanding Requests for Production by Complainants.

The following table summarizes the Parties' productions since the June 1 Order:

Party	Page Count
CMA	452
COSCO	0
Evergreen	0
IMCC	31,157
Hapag-Lloyd	28,225
HMM	3,207
Maersk	0
MSC	0
OCEMA	28,534
ONE	0
Wan Hai	0
Yang Ming	5,748
Zim	0

The following table summarizes the productions of the subpoenaed non-parties since the June 1 Order:

Non-Party	Page Count
Ability Tri-Modal Transportation Services	292
Best Transportation, LLC	0
Bulldog Hiway Express	57
ContainerPort Group Inc.	114
DCLI	188

Non-Party	Page Count
Devine Intermodal	0
Evans Delivery Company Inc.	115,495
Excargo Services, Inc.	0
Flexi-Van	215
IEPs	30
Intermodal Cartage Company	6
Lightning Transportation	0
Rail Delivery Services	0
Reliable Transportation Specialists, Inc.	228,379
TCW, Inc.	6,342
TRAC Intermodal	23
Triple G Express, Inc.	0
Ventura Transfer Company	18

To date, the Complainant has produced 31,252 pages of documents, Respondents have produced 73,379 pages of documents, and non-party motor carriers have produced 351,952 pages of documents, for a total of 456,583 pages of documents, which is a small percentage of the millions of pages that were reviewed electronically and manually in order to identify responsive documents for production. However, despite the significant amount of work which has been completed to date, further work needs to be done before the parties will be in a position to conduct depositions. Respondents have been producing documents on a rolling basis but have not yet completed their reviews and production of potentially responsive documents.

Complainant notes that only Respondents OCEMA, CMA, Hapag-Lloyd, HMM, and Yang Ming have made any rolling productions since the June 1 Order. Respondents note that four of the non-party motor carriers have objected to making a production based on the grounds that they operate outside “geographic areas” referenced in the Joint Status Report dated March 1, 2021 (“JSR 1”) and one, Lightning Transportation, has not responded at all. Complainant responds that the Parties notified the Presiding Officer in the June 1, 2021 Joint Status Report and

Proposed Amended Discovery Schedule (“JSR 2”) of the non-party motor carriers’ objections to broadening the scope of non-party discovery beyond the agreed-upon geographic limitations for “certain categories of initial Party document discovery.” Amended Scheduling Order at 2 (June 9, 2021) (quoting JSR 1 at 1).¹ Furthermore, counsel for Complainant and Respondents will need time to analyze the documents produced by the parties and non-parties before conducting depositions.

Counsel for the parties have conferred to discuss these matters and propose to extend the date for completion of document production to September 3, 2021, during which time all Parties will make rolling productions of documents. Further, the parties anticipate they will need a period of time between the dates when document production is completed and when depositions will begin to analyze and marshal the significant data base of documents for use at the depositions. Given the number of Parties and the number of non-parties which have produced documents and whose testimony will be needed, the parties currently estimate that they will need approximately sixty days to complete depositions. Finally, Complainant expects that, given the potential number of Respondent and non-party witnesses with relevant information, it will likely be necessary to seek permission from the Presiding Officer to exceed the 20 depositions limit under FMC Rule 502.143(a)(2)(i).

¹ In full, the Presiding Officer stated: “In JSR 1, the parties state that they ‘have conferred and propose limiting certain categories of initial Party document discovery to the following geographic areas: the Ports of Long Beach and Los Angeles, the Port of Savannah, intermodal terminals in the Chicago area, and intermodal terminals in the Memphis area.’ JSR 1 at 1.” Amended Scheduling Order at 2.

In light of the time needed to finish review and production of the documentary discovery and to conduct depositions as described above, the Parties request that the schedule be amended as follows:²

Event	Deadline
Complete Document Production	September 3, 2021
Start Date for Deposition Period	October 12, 2021
Complete Fact Depositions	December 10, 2021
Submit Joint Stipulation of Facts	December 20, 2021 ³
Disclosure of Initial Expert Reports	January 20, 2022
Disclosure of Rebuttal Expert Reports	February 10, 2022
Expert Discovery Cut-off	February 24, 2022
Completion of Discovery	March 10, 2022
Motions for Summary Decision	March 24, 2022

In addition, Complainant wishes to bring two discovery-related issues to the Presiding Officer's attention. First, Complainant is currently negotiating with IEPs over deficiencies in their productions and expects to bring these disputes to the Presiding Officer for resolution soon. Second, Respondent CMA has produced several documents with critical commercial terms redacted. It is Complainant's understanding that CMA is refusing to produce these documents in unredacted form on the basis of confidentiality concerns, even though no other Party or non-party motor carrier has asserted or maintained such objections. If Complainant and Respondent CMA cannot resolve this dispute, they will present the dispute to the Presiding Officer for resolution.

² As Complainant stated in JSR 2, it joins this request for an extension based on its position as to the geographic scope of initial discovery. If the geographic areas identified in the JSR 1 do not limit initial discovery, especially for non-parties like the 13 motor carriers and the three IEPs, a longer extension may be necessary. See JSR 2 at 5, n. 1.

³ While the Parties will work on a Joint Stipulation as depositions progress, they suggest that the date for its completion be scheduled for ten days after the date on which depositions will be completed.

Respondents have observed that four of the non-party motor carriers have objected to making a production based on the grounds that they operate outside “geographic areas” referenced in the March 1 Report and one motor carrier, Lightning Transportation, has not responded at all. If this issue cannot be resolved, Respondents will file a motion to compel. Complainant responds that the Presiding Officer’s Amended Scheduling Order stated that, while a “motion to compel has not yet been filed so it would be premature to issue a binding order on this issue,” “it is in the interests of the parties and nonparties to focus discovery on the areas most likely to aid in resolving the proceeding and to control costs by limiting discovery during the early stages of this proceeding, especially for nonparties,” and “[t]his would not waive a party’s ability to take needed discovery at a later date.” Amended Scheduling Order at 2.⁴ Finally, Respondents are still reviewing the documents produced by the non-party motor carriers but, to date, have not seen container usage invoices from IEPs to the subpoenaed motor carriers and reciprocal invoices from those motor carriers to their customers, nor any rate sheets or tariffs. If the production does not include these documents, and the omission cannot be resolved, this issue may have to be presented to the Presiding Officer. Complainant responds that the non-party motor carriers that operate in the four geographic areas identified in JSR 1 have collectively produced and will continue to produce hundreds of thousands of pages and voluminous data responsive to Respondents’ subpoenas pursuant to the negotiated scope of discovery in this initial phase of discovery.

⁴ In full, the Presiding Officer stated: “A motion to compel has not yet been filed so it would be premature to issue a binding order on this issue. However, it is in the interests of the parties and nonparties to focus discovery on the areas most likely to aid in resolving the proceeding and to control costs by limiting discovery during the early stages of this proceeding, especially for nonparties. Nonparties served discovery exceeding the geographic scope of discovery directed to parties may have a basis to challenge that discovery. This would not waive a party’s ability to take needed discovery at a later date.” Amended Scheduling Order at 2.

Respectfully submitted,

Dated: August 13, 2021

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CERTIFICATE OF SERVICE

I certify that, on August 13, 2021, a true and current copy of the foregoing Joint Status Report and Proposed Amended Discovery Schedule was filed via electronic mail with the Secretary of the Federal Maritime Commission, and a copy was served via electronic mail on the following counsel:

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